

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
RAYON HODGE,

SUMMONS

Plaintiff(s),

Plaintiff designates Kings
County as the place of trial.

-vs-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE
OFFICER KINGSLEY I. OKAFOR SHIELD NO. 2067,
NEW YORK CITY POLICE OFFICERS JOHN AND
JANE DOE #1-10(intended as police officers whose names
and identifying information are unknown)

The basis of venue is: where
the cause of action arose

Plaintiff resides at:
3360 Milburn Avenue

Defendant(s).

Baldwin, NY 11510
County of Nassau

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NY
October 22, 2024


Dylan Leist, Esq.
GREENSTEIN & MILBAUER, LLP
Attorney for Plaintiff(s)
Rayon Hodge
1825 Park Avenue
9th Floor
New York, NY 10035
(212) 685-8500
Our File No. 22197

TO:
City of New York

100 Church Street
New York, NY 10007

New York City Police Department
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RAYON HODGE,

Plaintiff(s),

-vs-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE
OFFICER KINGSLEY I. OKAFOR SHIELD NO. 2067, NEW
YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-
10(intended as police officers whose names and identifying
information are unknown)

Defendant(s).

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**VERIFIED
COMPLAINT**

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Plaintiff by his attorneys, **GREENSTEIN & MILBAUER, LLP**, complaining of the

Defendants, respectfully alleges, upon information and belief:

1. At all times herein mentioned, Plaintiff, Rayon Hodge, was, and still is, a resident of the County of Nassau, State of New York.
2. At all times herein mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation.
3. That on April 16, 2024, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of CITY OF NEW YORK and that, thereafter, said Comptroller for CITY OF NEW YORK refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
4. On or about September 16, 2024, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim

against The City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by The City of New York in response to this claim, and more than thirty (30) days have elapsed.

5. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
6. That upon information and belief, at all times herein, the defendant, CITY OF NEW YORK, owned, operated, managed, maintained and controlled its police department pursuant to law.
7. At all times mentioned, Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, was, is and remains an employee, agent, and/ or servant of the Defendant, CITY OF NEW YORK, and/ or the aforementioned Police Department maintained by Defendant, CITY OF NEW YORK.
8. Upon information and belief, at all times mentioned, Defendant NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, was acting under the color of law including inter alia, federal state, and municipal laws, codes, ordinances, and/or statutes.
9. At all times mentioned, Defendant, P.O. JOHN DOE I, was, is, and remains an employee, agent, and/ or servant of the Defendant, CITY OF NEW YORK, and/ or the aforementioned Police Department maintained by Defendant, CITY OF NEW YORK.
10. Upon information and belief, at all times mentioned, Defendant P.O. JOHN DOE I, was acting under the color of law including inter alia, federal state, and municipal laws, codes, ordinances, and/or statutes.

11. At all times mentioned, Defendant, P.O. JOHN DOE II, was, is and remains an employee, agent, and/ or servant of the Defendant, CITY OF NEW YORK, and/or the aforementioned Police Department maintained by Defendant, CITY OF NEW YORK.
12. That at no time was Plaintiff engaged in any criminal or unlawful activity under Docket Number #CR-041970-23KN.
13. Upon information and belief, at all times mentioned, Defendant P.O. JOHN DOE II, was acting under the color of law including inter alia, federal state, and municipal laws, codes, ordinances, and/or statutes.
14. That at no time was Plaintiff engaged in any criminal or unlawful activity.
15. Thereafter Plaintiff was arrested and transported to the 67th Precinct.
16. That while Plaintiff was at this Precinct, the Plaintiff was searched and nothing of an illegal nature was recovered.
17. That after being held in a cell inside of this Precinct for approximately one day Plaintiff was transported to Central Booking.
18. That after being held at Central Booking for approximately one day, Plaintiff was released from custody.
19. That Plaintiff was forced to attend Court in relation to the charges for which he was arrested for on several separate occasions.
20. That on or about February 21, 2024, the Kings County Criminal Court dismissed all charges for which Plaintiff was arrested for on November 14, 2023.

AS AND FOR A FIRST CAUSE OF ACTION IN FAVOR OF PLAINTIFF

21. On or about November 14, 2023, the Plaintiff, Rayon Hodge, was approached, assaulted, battered, and falsely arrested by Police Officers employed by Defendant CITY OF NEW YORK, including inter alia Defendants P.O. JOHN DOE I and P.O. JOHN DOE II. The events that resulted in Rayon Hodge's arrest began at or near 234 E 89th St, Brooklyn, NY 11236

22. That the Plaintiff, Rayon Hodge, was arrested while lawfully present at the aforesaid location, despite the fact that the Plaintiff had committed no crime, and despite the fact that Defendants, CITY OF NEW YORK, P.O. JOHN DOE I and P.O. JOHN DOE II, did not have probable cause to arrest the Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION IN FAVOR OF PLAINTIFF

23. Plaintiff, Rayon Hodge, repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. On or about November 14, 2023, the Defendants jointly, severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed, and seized the Plaintiff, Rayon Hodge, which began at or near 234 E 89th St, Brooklyn, NY 11236

25. Avenue in the County, City, and State of New York and did so in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, Rayon Hodge, nor did Plaintiff, Rayon Hodge consent to this illegal touching nor was it privileged by law.

AS AND FOR A THIRD CAUSE OF ACTION IN FAVOR OF PLAINTIFF

26. The Plaintiff, Rayon Hodge, repeats, reiterates and realleges all of the allegations contained in Paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. On or about November 14, 2023, the plaintiff, Rayon Hodge, was assaulted and falsely arrested by New York City Police Officers. The events that resulted in Plaintiff, Rayon Hodge's arrest began at or near 234 E 89th St, Brooklyn, NY 11236

28. Plaintiff, Rayon Hodge was at the aforementioned location when he was approached and assaulted by members of the New York City Police Department namely the defendants, P.O. JOHN DOE I and P.O. JOHN DOE II. At the aforementioned time and place,

Plaintiff, Rayon Hodge, was falsely arrested, falsely imprisoned, abused, assaulted, battered, and caused to sustain serious personal injuries and deprived of his Civil Rights. The Defendant, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, Rayon Hodge, restrained him and his liberty, and then took him into custody. The Defendants intentionally confined Plaintiff, Rayon Hodge, without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff, Rayon Hodge, was conscious of his confinement.

29. Plaintiff, Rayon Hodge suffered economic damages for the Impound fees incurred as a result of this False arrest.

**AS AND FOR THE FOURTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF AS
AGAINST P.O. JOHN DOE I (both individually and in his capacity as a Police Officer)**

30. The Plaintiff, Rayon Hodge, repeats, reiterates, and realleges all of the allegations contained in paragraphs "1" through "29" as it set forth at length herein.
31. The Defendant, P.O. JOHN DOE I, was at all times relevant, duly appointed, and acting as an officer of the New York City Police Department.
32. At all times mentioned herein, Defendant, P.O. JOHN DOE I was acting under color of law, to wit: the statutes, ordinances, regulations, policies, and customs and usage of the State of New York and/or City of New York.
33. The Plaintiff, Rayon Hodge, brings this cause of action pursuant 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
34. The Defendant, THE CITY OF YORK, is a municipality duly incorporated under the laws of the State of New York.
35. On or about November 14, 2023, the Defendant, P.O. JOHN DOE I, an armed police officer, while effectuating the seizure of the Plaintiff; Rayon Hodge, did search, seize, assault and commit a battery and grab the person of the Plaintiff, Rayon Hodge, including

inter alia, grabbing the Plaintiff, Rayon Hodge, and striking him, and assisting other officers in doing the same. Defendant, P.O. JOHN DOE I, did physically seize the person of Plaintiff, Rayon Hodge, during the arrest process in an unlawful and excessive manner. Plaintiff, Rayon Hodge, was falsely arrested without the Defendants possessing probable cause to do so; also, he had to seek medical attention as a result of the excessive force used by Defendant, P.O. JOHN DOE I, herein against his person.

36. In arresting and detaining a claimant against his will by use of a quota system for arrest, which is a practice and customary system used by the New York City Police Department. Plaintiff, Rayon Hodge, was stopped through a process of racial profiling employed by the Defendants.

37. The above action of Defendant, P.O. JOHN DOE I, resulted in the Plaintiff, Rayon Hodge, being deprived of the following rights under the United States Constitution:

- a. Freedom from summary punishment; and
- b. Freedom from cruel and unusual punishment; and
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest; and
- e. Freedom from the use of excessive force during the arrest process.

38. The Defendant, P.O. JOHN DOE I, subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff, Rayon Hodge's rights or with deliberate indifference to those rights under the Fourth and fourteenth amendments of the United States Constitution.

39. The direct and proximate result of the Defendant, P.O. JOHN DOE I's acts are that Plaintiff, Rayon Hodge, has suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A FIFTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF AS AGAINST
P.O. JOHN DOE II (Both individually and in his capacity a Police Officer)**

40. The Plaintiff, Rayon Hodge, repeats, reiterates, and realleges all of the allegations contained in paragraphs "1" through "39" as set forth at length herein.
41. The Defendant, P.O. JOHN DOE II, was at all times relevant, duly appointed, and acting as an officer of the New York City Police Department.
42. At all times mentioned herein, the Defendant, P.O. JOHN DOE H, was acting under color of law, to wit: the statutes, ordinances, regulations, policies, and customs and usage of the State of New York and/or the City of New York.
43. The Plaintiff, Rayon Hodge, brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
44. The Defendant, THE CITY OF YORK, is a municipality duly incorporated under the laws of the State of New York.
45. On or about November 14, 2023, Defendant, P.O., an armed police officer, while effectuating the seizure of Plaintiff, Rayon Hodge, did search, seize, assault and commit battery and grabbed the person of Plaintiff, Rayon Hodge, without just and legal cause, and without a court authorized arrest or search warrant. Defendant, P.O. JOHN DOE II, did physically seize the Plaintiff, Rayon Hodge, during the arrest process in an unlawful and excessive manner, including grabbing, shoving, and striking the Plaintiff. Plaintiff Rayon Hodge was falsely arrested without the Defendants possessing probable cause to do so; also, he had to seek medical attention as a result of the excessive force used by Defendant, P.O. JOHN DOE II, herein against his person.
46. In arresting and detaining a claimant against his will by use of a quota system for arrest, which is a practice and customary system used by the New York City Police Department. Plaintiff, Rayon Hodge, was stopped through a process of racial profiling employed by the Defendants.
47. The above action of Defendant, P.O. JOHN DOE II, resulted in Plaintiff, Rayon Hodge, being deprived of the following rights under the United States Constitution:

- a. Freedom from summary punishment; and
- b. Freedom from cruel and unusual punishment; and
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest; and
- e. Freedom from the use of excessive force during the arrest process.

48. The Defendant, P.O. JOHN DOE II, subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff, Rayon Hodge's rights or with deliberate indifference to those rights under the Fourth and fourteenth amendments of the United States Constitution.

49. The direct and proximate result of Defendant, P.O. JOHN DOE II's acts is that the Plaintiff, Rayon Hodge, has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

**AS AND FOR A SIXTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF AS AGAINST
NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO.
2067(Both individually and in his capacity a Police Officer)**

50. The Plaintiff, Rayon Hodge, repeats, reiterates, and realleges all of the allegations contained in paragraphs "1" through "49" as it set forth at length herein.

51. The Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, was at all times relevant, duly appointed and acting as an officer of the New York City Police Department.

52. At all times mentioned herein, the Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

53. The Plaintiff, Rayon Hodge, brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

54. The Defendant, THE CITY OF YORK, is a municipality duly incorporated under the laws of the State of New York.

55. On or about November 14, 2023, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, an armed police officer, while effectuating the seizure of the Plaintiff, Rayon Hodge, did search, seize, assault and commit a battery and grab the person of the Plaintiff, Rayon Hodge, without just and legal cause, and without a court authorized arrest or search warrant. Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, did physically seize the person of Plaintiff, Rayon Hodge, during the arrest process in an unlawful and excessive manner, including grabbing, shoving, and striking the Plaintiff. Plaintiff Rayon Hodge was falsely arrested without the Defendants possessing probable cause to do so; also, he had to seek medical attention as a result of the excessive force used by Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, herein against his person.

56. In arresting and detaining a claimant against his will by use of a quota system for arrest, which is a practice and customary system used by the New York City Police Department. Plaintiff, Rayon Hodge, was stopped through a process of racial profiling employed by the Defendants.

57. The above action of Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, resulted in the Plaintiff, Rayon Hodge, being deprived of the following rights under the United States Constitution:

- a. Freedom from summary punishment; and
- b. Freedom from cruel and unusual punishment; and
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest; and
- e. Freedom from the use of excessive force during the arrest process.

58. The Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067, subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff, Rayon Hodge's rights or with deliberate indifference to those rights under the Fourth and fourteenth amendments of the United States Constitution.

59. The direct and proximate result of the Defendant, NEW YORK CITY POLICE OFFICER KINGSLEY I. OKAFOR, SHIELD NO. 2067 acts is that the Plaintiff, Rayon Hodge, has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF

60. The Plaintiff, Rayon Hodge, incorporates repeats and all of the allegations contained in Paragraphs "1" through "59" with full force and effect as though set forth at length herein.

61. The Defendant, THE CITY OF YORK, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

62. The Defendant, THE CITY OF YORK, was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest search warrant, said police officers of CITY OF NEW YORK are not to arrest individuals such as Rayon Hodge here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

63. CITY OF NEW YORK is negligent due to its failure to implement a policy with its

Police Department or actively enforce the law, if any of the following are lacking:

- f. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
- g. Force cannot be used against an individual who does not physically resist arrest.
- h. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

64. The foregoing acts, omissions, and systemic failures are customs and policies of the defendant, CITY OF NEW YORK, which caused the police officers to falsely arrest, seize illegally and search the Plaintiff, Rayon Hodge, commit an assault battery to his person and deny him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF

65. The Plaintiff, Rayon Hodge, repeats, reiterates, and realleges all of the allegations contained in paragraphs "1" through "64" as if set forth at length

66. The Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the defendant, CITY OF NEW YORK, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the defendant, CITY OF NEW YORK, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

67. That by reason of the foregoing, Plaintiff, Rayon Hodge, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and

mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff, Rayon Hodge, incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

68. The Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, CITY OF NEW YORK, knew or should have known of the bad

69. The Defendant, THE CITY OF YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the defendant, CITY OF NEW YORK, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the defendant, THE CITY OF YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

70. That by reason of the foregoing, Plaintiff, Rayon Hodge, was severely injured and damaged, rendered sick, sore, lame, and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration,

and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff, Rayon Hodge, incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

71. The Defendant, CITY OF NEW YORK, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, CITY OF NEW YORK, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

72. That by reason of the aforesaid unlawful arrest, the plaintiff, Rayon Hodge, was deprived of his liberty, was subjected to great indignity, humiliation, pain, and great distress of mind and body, and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

AS AND FOR A NINTH CAUSE OF ACTION IN FAVOR OF PLAINTIFF

73. The Plaintiff, Rayon Hodge, repeats, reiterates, and realleges all of the allegations contained in paragraphs" 1" through 72" as if set forth at length herein.

74. The Defendant, CITY OF NEW YORK, intentionally and maliciously initiated and actively continued, a criminal judicial proceeding against the plaintiff, Rayon Hodge, without probable cause.

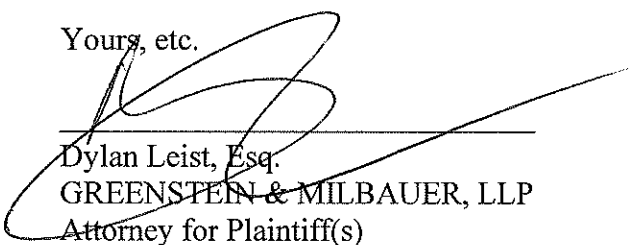
75. That the above-mentioned criminal judicial proceeding commenced by the Defendants terminated in the Plaintiff, Rayon Hodge's favor.

76. That by reason of the foregoing, Plaintiff Rayon Hodge has been damaged in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the Plaintiff, Rayon Hodge, demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction. Additionally, Plaintiff's demand in respect of all causes of action, punitive damages, and attorney fees pursuant to 42 USC Section 1988.

DATED: New York, NY
October 22, 2024

Yours, etc.



Dylan Leist, Esq.
GREENSTEIN & MILBAUER, LLP
Attorney for Plaintiff(s)
Rayon Hodge
1825 Park Avenue
9th Floor
New York, NY 10035
(212) 685-8500
Our File No. 22197

ATTORNEY'S VERIFICATION

DYLAN LEIST, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENSTEIN & MILBAUER, LLP, attorneys of record for

Plaintiff(s), RAYON HODGE, in the action within. I have read the annexed **BILL OF**

PARTICULARS and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, NY
October 22, 2024



DYLAN LEIST, ESQ.